

Nigeria 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Nigeria during the year.

Significant human rights issues included credible reports of: arbitrary and unlawful killings; disappearances; torture or cruel, inhuman, or degrading treatment or punishment; arbitrary arrest or detention; serious abuses in a conflict; serious restrictions on freedom of expression and media freedom, including violence or threats of violence against journalists; violence or threats against labor activists or union members; and significant presence of any of the worst forms of child labor.

The government sometimes took steps to investigate alleged human rights abuses by officials, but prosecution and punishment for such abuses was rare.

Nonstate actors committed arbitrary and unlawful killings, disappearances, physical abuse, and other mistreatment. Boko Haram and the Islamic State in West Africa continued attacks on civilians, military, police, humanitarian, and religious targets; unlawfully recruited and forcibly conscripted child soldiers; and carried out scores of attacks on population centers in the North East region. Abductions by Boko Haram and the Islamic State in West Africa

continued. Both groups subjected many women and girls to gender-based violence, including forced marriages, sexual slavery, and rape. The government investigated attacks by Boko Haram and the Islamic State in West Africa and took steps to counter the growth of the insurgency.

Individuals believed to be associated with the Eastern Security Network, the armed wing of the separatist group the Indigenous People of Biafra, staged attacks on security personnel, civilians, and government offices, including police stations in the South East region. Criminal gangs killed civilians and conducted mass kidnappings across the country, in some cases targeting children. Authorities attempted to investigate and prosecute some incidents.

Section 1. Life

a. Extrajudicial Killings

There were reports the government or its agents committed arbitrary or unlawful killings.

There were numerous killings reported similar to the following examples.

In August, nongovernmental organizations (NGOs) and media organizations reported on security forces killing and injuring individuals during the #EndBadGovernance demonstrations that occurred that month around the country. In November, Amnesty International published a report that stated

it had found police killed at least 24 persons in connection with the August protests. Local media reported on one instance in which a boy age 16 was killed in Zaria State; the army reportedly arrested one soldier involved and began an investigation.

In October 2023, Amnesty International reported that 15 protesters who participated in the 2020 #EndSARS (Special Anti-Robbery Squad) protests against police brutality had been in detention since 2020. In March, the Lagos State High Court discharged and acquitted three persons of alleged involvement in the #EndSARS protests. In August, a Lagos State Magistrate Court discharged six individuals who were arrested during the #EndSARS protests after they pled guilty to a reduced charge of breach of the peace. Three Nigerians filed suit for human rights abuses during the protests with the Economic Community of West African States Court of Justice. The court ruled the country violated the human rights of the three persons and ordered the country to pay each individual two million naira (\$1,370), that the security agents responsible for the offenses should be prosecuted, and that authorities had to submit a status report to the court within six months.

There were reports of mass killings by criminal gangs nearly every month in the northwestern states. For example, during a five-day period in May, gangs killed 49 persons in Anka Local Government Area of Zamfara State.

b. Coercion in Population Control

The National Human Rights Commission (NHRC) investigated the allegations made in a 2022 Reuters report of a secret military program of forced or coerced abortions of women and girls who had either escaped or been rescued from Boko Haram captivity. On November 8, the NHRC released a report stating there was no evidence of an abortion program run by the military.

c. War Crimes, Crimes against Humanity, and Evidence of Acts that May Constitute Genocide, or Conflict-Related Abuses

The insurgency in the North East region by the militant terrorist groups Boko Haram and ISIS-West Africa (ISIS-WA) continued. The groups conducted numerous attacks on government and civilian targets, resulting in thousands of deaths and injuries, widespread destruction of property, and internal and external displacement with more than 3.6 million internally displaced persons (IDPs) and 383,000 Nigerian refugees in mostly Chad, Cameroon, and Niger. Armed criminal groups linked to Indigenous People of Biafra (IPOB) movement separatists in the South East region conducted significant attacks on government and civilian targets, resulting in dozens of deaths and injuries, destruction of property, and reduction in economic activity.

Military operations against ISIS-WA, Boko Haram, and criminal organizations targets resulted in civilian deaths.

On April 10, an airstrike on a village in Zamfara State killed at least 33 persons according to the village leader and residents. The military reported airstrikes took place across Zamfara, including Maradun Local Government Area, and had eliminated “armed bandits.” The leader of the Dogon Daji village in Maradun claimed no armed bandits were present in the area. Nigerian Defense Headquarters denied civilians were killed but did not provide a death toll.

There were numerous reports of deliberate killings or deaths resulting from attacks by suspected terrorist organizations. In June, women suicide bombers conducted a series of coordinated attacks in Borno, killing at least 20 individuals.

There were reports security services used excessive force in the pursuit of Boko Haram and ISIS-WA suspects, at times resulting in sexual violence or other forms of abuse. There were reports the government arrested and, in some cases, inappropriately detained for prolonged periods – reportedly for security screening and perceived intelligence value – women and children removed from or allegedly associated with Boko Haram and ISIS-WA, including women and girls whom insurgents had forcibly married or sexually enslaved. There were reports authorities held many detainees in poor conditions in the North East region, and some of the detained included

children and women believed to be associated with Boko Haram, some of whom might have been forcibly recruited or married.

Boko Haram and ISIS-WA engaged in widespread gender-based violence against women and girls, including rape and forced marriage. Some women rescued by government forces were reportedly forcibly married multiple times as successive husbands died fighting government security forces.

Section 2. Liberty

a. Freedom of the Press

Although the constitution and law provided for freedom of expression, including for members of the press and other media, in some cases the government restricted these rights.

There were reported cases in which the government restricted the ability of individuals to criticize the government. Critics of the government reported at times being subjected to threats, intimidation, arrest, detention, and violence. The government used broad “cyberbullying” charges to arrest internet users who posted derogatory statements concerning public figures. Following the August #EndBadGovernance protests, security services raided civil society organizations, such as the governance and human rights focused NGO Socio-Economic Rights and Accountability Project and the National Labor Congress (NLC), which observers regarded as an attempt to intimidate

these organizations.

Blasphemy, or intentionally insulting religion to cause offense, was criminalized throughout the country through state criminal and penal codes. Penalties included imprisonment for two to five years or fines.

Physical Attacks, Imprisonment, and Pressure

There were reports security services detained, harassed, and threatened journalists, or stood by as others attacked journalists. Security services detained, harassed, or attacked at least 56 journalists nationwide during the August #EndBadGovernance protests, according to the Committee to Protect Journalists, an international NGO.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

While a large and vibrant private press frequently criticized the government, authorities controlled much of the television and radio programming through the National Broadcasting Commission, which was responsible for monitoring and regulating broadcast media. Cable and satellite transmission was less restricted.

Some journalists reported they practiced self-censorship. Journalists and local NGOs claimed security services intimidated journalists, including editors and owners, into censoring reports perceived to be critical of the

government. For example, according to press reports, Adejuwon Soyinka, a journalist with *Conversation Africa*, was arrested upon arrival at Lagos airport. Authorities told him his name was put in a watchlist by an unnamed security agency.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided workers the right to form or belong to a trade union or other association, bargain collectively, and conduct legal strikes. Some statutory limitations substantially restricted these rights. The law prohibited antiunion discrimination but did not adequately protect against it.

Substantial restrictions on the rights of workers to form and join a union included, for example, the requirement of prior authorization or approval by the ministry to establish a union. A new trade union could not register if it had fewer than 50 members or another union was already registered in the trade or profession. Lengthy notice periods and an unlimited timeline for the ministry to deliberate on objections also deterred legitimate worker organization. Penalties were imposed for organizing or joining an unrecognized organization.

The law limited the scope of collective bargaining. For example, every collective agreement on wages had to be registered with the National

Salaries, Income, and Wages Commission, which decided whether the agreement became binding. The law placed restrictions on workers' right to strike. For example, the law required a majority vote of all registered union members to call a strike and limited the right to strike to certain types of labor disputes, such as those arising from an employment contract or related to wages and conditions of work. Strike actions, including many in nonessential services, could be subject to a compulsory arbitration procedure leading to a final award, which would be binding on the parties concerned. Strikes based on disputed national economic policies were prohibited. Penalties for participating in an illegal strike included fines and imprisonment for up to six months.

Workers and employers in export processing zones (EPZ) had fewer legal protections than other workers. The law did not allow worker representatives free access to the EPZs to organize workers, and it prohibited workers from striking for 10 years following the commencement of operations by the employer within a zone. In addition, the Nigerian Export Processing Zones Authority, which the federal government created to manage the EPZ program, had exclusive authority to handle the resolution of disputes between employers and employees, thereby limiting the autonomy of the bargaining partners.

The law defined "essential services" more broadly than recommended by the International Labor Organization, disallowing labor protections for public

employees, for example, of the central bank, the stamp and currency authority, postal service, transportation workers, and immigration officials.

Common government and employer practices limited or violated worker rights. Many allegations of antiunion discrimination and obstruction of collective bargaining were reported. Specific acts included denial of the right to join trade unions, massive dismissals for trying to join trade unions, mass repression of union members, intimidation of union leadership officials, and arrests of union members.

While workers exercised some of their rights, the government generally did not effectively enforce applicable laws. Penalties were not commensurate with those for similar violations and were rarely applied. In many cases, workers' fear of negative repercussions inhibited reporting of antiunion activities. According to labor representatives, police rarely gave permission for public demonstrations and routinely used force to disperse protesters.

Collective bargaining occurred throughout the public sector and the organized private sector but was restricted in some parts of the private sector, particularly in banking and telecommunications. According to the International Trade Union Confederation (ITUC), the government and some private sector employers occasionally failed to honor collective agreements.

In August, police raided Labour House, the headquarters of the umbrella group NLC. In September, following August protests, police arrested NLC

labor union leader Joe Ajaero at the airport as he was departing to attend a conference, and interrogated him regarding alleged terrorism financing, but police released him a few hours later. The ITUC condemned this as part of a campaign of harassment and intimidation.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a national minimum wage for public and private sector employers with 25 or more full-time employees, with exceptions for seasonal agricultural workers, part-time workers, those on commission, and some others. The National Minimum Wage (Amendment) Act 2024 doubled the minimum wage to 70,000 naira (\$47.90) per month. Despite the increase, currency devaluation meant the minimum wage was no longer higher than the poverty income level. Many employers had fewer than 25 employees, so most workers were not covered. Some states declined to implement the minimum wage law, citing financial constraints.

The law mandated a 40-hour workweek, two to four weeks of annual leave, and overtime and holiday pay, except for agricultural and domestic workers.

The law did not define premium pay or overtime. The law prohibited excessive compulsory overtime for civilian government employees.

Occupational Safety and Health

There were occupational safety and health (OSH) standards generally appropriate for the main industries in the country. OSH experts did not actively identify unsafe conditions and there were insufficient OSH inspectors to respond to workers' OSH complaints. By law, workers could remove themselves from situations endangering health or safety without jeopardy to their employment, but authorities did not effectively protect employees in these situations. Sectors in which alleged violations of OSH standards were common included factories, mining, and petroleum.

Wage, Hour, and OSH Enforcement

The government rarely effectively enforced minimum wage, overtime, and OSH laws. Penalties were low, not commensurate with other crimes such as fraud, and rarely applied. The Ministry of Labor and Employment was responsible for enforcement of wage, hour, and OSH laws, but the number of labor inspectors was insufficient to enforce compliance. Although the law gave labor inspectors authority to make unannounced visits and initiate sanctions, it stipulated most individuals needed to file a complaint before the National Industrial Court of Nigeria.

Between 70 and 80 percent of the country's working population worked in

the informal economy. Authorities did not enforce wage, hour, and OSH laws and inspections in the informal sector or with part-time workers.

c. Disappearance and Abduction

Disappearance

There were reports of disappearances by or on behalf of government authorities. According to the NGO Amnesty International, the whereabouts of “dozens of young men detained at SARS Awkuzu,” a former SARS police station in Anambra State, remained unaccounted for since the disbandment of the SARS in 2020. Amnesty International also cited cases from Rivers and Abia States of persons taken into custody between 2012 and 2022, regarding whom there was no information. Some victims were suspected of involvement in the IPOB movement.

Unidentified criminal and armed groups kidnapped persons throughout the year, including for ransom, and many victims’ whereabouts remained unknown.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government sometimes did not observe these requirements.

Police and other security services had the authority to arrest individuals without a warrant if officials reasonably suspected a person committed a crime. Security forces sometimes abused this authority. The law required subjects be brought before a magistrate within 48 hours and have access to lawyers and family members. According to the law, initial pretrial detention orders were not to exceed 14 days. In some instances, government and security employees did not adhere to this regulation.

The law required an arresting officer to allow the suspect to obtain counsel and post bail for some crimes. Provision of bail was often arbitrary or subject to extrajudicial influence. In many areas with no functioning bail system, suspects were incarcerated indefinitely in investigative detention. Numerous detainees stated police demanded bribes to take them to court hearings or to release them.

The government's Legal Aid Council's Duty Solicitor Scheme was unable to provide free legal advice at all government detention facilities.

At times, authorities kept detainees incommunicado for long periods.

Security personnel reportedly arbitrarily arrested numerous persons during the year. In their prosecution of corruption cases, law enforcement and intelligence agencies did not always follow due process, arresting suspects without appropriate arrest and search warrants.

In May, police arrested investigative journalist Daniel Ojukwu after he

reported on alleged corruption involving a high-ranking government official in a November 2023 article. He was held for nine days, five of which were incommunicado.

Media, human rights defenders, and international NGOs reported authorities arrested hundreds of protesters during and in the aftermath of the August #EndBadGovernance protests. An Amnesty International investigation found more than 1,200 individuals were arrested. Authorities charged at least 76 persons with treason and conspiracy to incite a mutiny, which carried a possible death penalty. In September, the Federal High Court in Abuja granted bail to at least 10 protesters charged with treason.

Lengthy pretrial detention was a serious problem. Detainees often waited years to gain access to a court, and in many cases, multiple adjournments resulted in years-long delays. Some detainees were held in pretrial detention for periods equal or exceeding the maximum sentence for the accused crime. The shortage of trial judges, trial backlogs, endemic corruption, bureaucratic inertia, and undue political influence seriously hampered the judicial system. Some detainees had their cases delayed because the Nigeria Police Force and the Nigerian Correctional Service did not have vehicles to transport them to court. Some individuals remained in detention because authorities lost their case files.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The law mostly prohibited such practices, but there were credible reports government officials employed them.

The law defined and criminalized torture and cruel, inhuman, or degrading treatment of arrestees but failed to prescribe penalties for violators and applied only to the Federal Capital Territory and federal agencies unless the individual states adopted legislation compliant with it. Thirty of the country's 36 states had adopted either the law itself or compliant legislation at year's end.

On March 15, the former editor of *FirstNews Online*, Segun Olatunji, was

detained by the Defence Intelligence Agency. Olatunji regained his freedom after two weeks in detention, during which his whereabouts were unknown. He claimed the persons detaining him tortured him, interrogated him concerning his investigation into official corruption, threatened, and humiliated him.

Prison guards reportedly committed gender-based violence against women prisoners. Some security officers allegedly sexually abused and exploited IDPs, including children, in and around Maiduguri.

Impunity for torture was a significant problem in the security forces, especially in police, military, and the DSS units. The government claimed to investigate security force members and hold them accountable for crimes committed on duty, but the results were rarely made public.

Federal law criminalized female genital mutilation/cutting (FGM/C). A 2022 report from the UN Population Fund found 22 of 36 states had laws against FGM/C. Enforcement of the law was rare, and a quarter of women and girls had undergone FGM/C. NGOs reported some local authorities were not convinced these state laws applied in their districts.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at

<https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Soldiers

There were reports of the continued unlawful recruitment or use of child soldiers by nonstate armed groups.

Child Marriage

Federal law set a minimum age of 18 for marriage for both boys and girls. While 35 states, all except Zamfara State, adopted the law, many states, especially northern states, did not uphold the federal minimum age. In some states, children as young as 11 could be legally married under customary or religious law. The government worked with local and international partners to engage religious leaders, emirs, and sultans on the issue, emphasizing the health hazards of early marriage.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in assisting refugees, returning refugees, or asylum seekers, as well as other persons of concern through the National Commission for Refugees, Migrants, and IDPs.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the

government had an established system for providing protection to refugees.

d. Acts of Antisemitism and Antisemitic Incitement

The Jewish population of the country was estimated to be between 2,000 and 40,000 persons. There were no known reports of antisemitic incidents.

e. Instances of Transnational Repression

Threats, Harassment, Surveillance, or Coercion

In August, the Nigerian Immigration Service stated it put citizens in the diaspora suspected of supporting the nationwide protests on a watchlist and stated they would be detained upon arrival if they attempted to return to the country. The service also stated it had frozen the bank accounts of suspect foreign residents. Activist and journalist Omoyele Sowore also reported being warned he would be arrested upon arrival if he returned to the country; he was questioned at the airport when he returned in September and granted entry.